conditions of [Plaintiff's] employment may be changed or withdrawn at Company's unrestricted option at any time, with or without good cause." (Murray Decl. ¶ 8, Ex. 3.) Read together, Plaintiff contends, the agreements reserve to Defendant unilateral control over the arbitration terms, rendering the Arbitration Agreement substantively unconscionable at the time of formation under *Ramirez*.

As Defendant argues, however, a unilateral modification provision does not render the arbitration agreement illusory or unconscionable because it is limited by the implied covenant of good faith and fair dealing. (*See 24 Hour Fitness, Inc. v. Sup. Ct.* (1998) 66 Cal.App.4th 1199, 1214; *Peleg v. Neiman Marcus Grp., Inc.* (2012) 204 Cal.App.4th 1425, 1465.) Even assuming the employment agreement and Arbitration Agreement are read together under section 1642, California courts have consistently held that a general "terms and conditions" modification provision does not render an arbitration agreement substantively unconscionable, because the implied covenant of good faith and fair dealing limits the modifying party's discretion. (*24 Hour Fitness*, *supra*, 66 Cal.App.4th at 1214; *Peleg*, *supra*, 204 Cal.App.4th at 1465.) The at-will employment agreement's modification language does not, on this record, render the Arbitration Agreement substantively unconscionable.

Ruling - Based on the above, the Arbitration Agreement demonstrates low procedural unconscionability (adhesive nature) and minimal substantive unconscionability. The combination does not reach the level necessary to render the agreement unenforceable. Plaintiff has not met his burden to establish unconscionability as a defense to arbitration.

Leave to Conduct Limited Discovery

Plaintiff requests limited discovery into whether Defendant, Lithia, DCH, Littler, or counsel has any "membership, donor, sponsorship, committee, repeat-user, or other institutional relationship with CPR" before any order compelling arbitration. (Pl.'s Opp. 15:7–8.) The request is denied. Plaintiff cites no authority requiring a court to permit discovery into an arbitral forum's institutional relationships before compelling arbitration, and Plaintiff has made no record-specific showing of actual partiality by the arbitrator who will be assigned to this case. Speculation about an arbitral provider's institutional affiliations, without any showing of bias affecting this proceeding, does not warrant pre-arbitration discovery.

3.

CASE #	CASE NAME	HEARING NAME
CVME2604885	DELACRUZ VS NISSAN NORTH AMERICA, INC.	MOTION TO STRIKE COMPLAINT

Tentative Ruling: Motion is Granted, Plaintiff granted 30 days leave to amend. Defendant now moves to strike portions of the Complaint concerning Plaintiff's claims for entitlement to civil penalty under the Song-Beverly Act (the "Act"). Defendant contends Plaintiff does not, and cannot, allege any facts showing Plaintiff complied with the prelitigation dispute-resolution procedures required under Code of Civil Procedure section 871.24, subdivision (a), required to pursue civil penalties. Defendant points out the Complaint fails to allege whether Plaintiff maintained possession of the Vehicle at the time of filing. Defendant seeks an order striking the following allegations in the Complaint: paragraphs 35, 62, and Prayer for Relief paragraph 5, "For civil penalty in the amount of two times Plaintiff's actual damages."

In opposition, Plaintiff maintains she sufficiently pled Defendant's willful violation of the Act. Plaintiff argues Defendant is improperly asking the Court to determine, at pleading stage, whether Plaintiff is entitled to civil penalties. Alternatively, Plaintiff requests leave to amend the Complaint.

In reply, Defendant points out Plaintiff does not dispute that the Complaint fails to allege compliance with Code of Civil Procedure section 871.24 and mischaracterizes Defendant's motion.

Defendant's Request for Judicial Notice ("RJN") - The Court grants Defendant's RJN as to Exhibits 1-3. (Evid. Code, § 452, subd. (h).)

Legal Standard - "[A] motion to strike is generally used to reach defects in a pleading which are not subject to demurrer." (*Pierson v. Sharp Memorial Hospital, Inc.* (1989) 216 Cal.App.3d 340, 342.) A motion to strike may be brought to strike the portion of a pleading on the grounds that that pleading contains "irrelevant, false, or improper matter" or "*not drawn in conformity with California law."* (Code Civ. Proc., § 435, subds. (a) & (b), italics added.) As with a demurrer, "[t]he grounds for a motion to strike shall appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice" or "based on matter of which the court may take judicial notice…" (Code Civ. Proc., § 437, subds. (a), (b).)

"Irrelevant matter" as used in section 436 for a motion to strike shares the same meaning as "immaterial allegation" as defined by section 431.10. (Code Civ. Proc., § 431.10, subd. (c).) The Code defines "immaterial allegation" as one of the following: (1) "An allegation that is not essential to the statement of a claim or defense"; (2) "An allegation that is neither pertinent to nor supported by an otherwise sufficient claim or defense"; or (3) "A demand for judgment requesting relief not supported by the allegations of the complaint or cross-complaint." (Code Civ. Proc., § 431, subd. (b)(1) - (3).)

Merits - A motion to strike can be used to attack improper demands. (Weil & Brown, *California Practice Group: Civil Procedure Before Trial* § 7:182 (Rutter Group 2025).)

Here, Defendant challenges Plaintiff's request for civil penalty and the prayer for such. Civil Code section 1794, subdivision (c) permits a civil penalty if the failure to comply with the Song-Beverly Act was willful. Effective July 1, 2025, the Legislature enacted a new requirement, i.e. the consumer must, at least 30 days before commencing an action seeking civil penalties, notify the manufacturer and demand that the manufacturer repurchase or replace the motor vehicle. (Code Civ. Proc., § 871.24, subd. (a).) Section 871.24, subd. (e)(1) provides:

A request for or action seeking civil penalties under subdivision (c) of Section 1794 of the Civil Code ***shall not be allowed or maintained*** if both of the following conditions are present:

Within 30 days after receipt of the notice, the manufacturer makes an offer of restitution or replacement of the motor vehicle for the amount provided by subdivision (d) of Section 1793.2 of the Civil Code and Section 871.27, plus reasonable attorney's fees and costs, if the consumer is represented by an attorney.

The motor vehicle replacement or restitution is completed within 60 days from the date of receipt of the original notice.

Furthermore, section 871.24(h) provides:

An action seeking restitution or replacement under Section 871.20 may be commenced without compliance with subdivision (a). In that event, the consumer shall have possession of the motor vehicle at the time of the filing of the complaint, and shall not seek civil penalties, whether by amendment of the complaint or otherwise. If, however, notice is provided pursuant to subdivision (a) and the manufacturer fails to comply with their obligations under subdivision (e), the consumer may commence an action for restitution or replacement, including, but not limited to, civil penalties under subdivision (c) of Section 1794 of the Civil Code.

In interpreting a statute, the court looks to ascertain the Legislature’s intent. (*LGCY Power, LLC v. Superior Court* (2022) 75 Cal.App.5th 844, 860.) The court first looks to the plain meaning, then the legislative history, and finally to the reasonableness of the proposed construction. (*Ibid.*)

The plain meaning indicates that an action shall not be allowed or maintained if a manufacturer makes an offer of restitution or replacement. More pointedly, section 871.24, subdivision (h), while not requiring compliance with the pre-lawsuit notice, indicates that the consumer may not seek civil penalties. This demonstrates an indication that this is a requisite to obtain penalties.

The legislative history indicates the following:

Given Californias prevalent car culture, the states lemon law statutes are a foundational consumer protection for millions of Californians. Unfortunately, in recent years a flurry of civil actions have been filed under the lemon law statutes and now discovery disputes and protracted settlement processes are serving to delay the courts processing of these cases. As a result California consumers are being denied justice and automobile manufacturers are facing significant legal uncertainty.

AB 1755 is a compromise measure between consumer advocates and automobile manufacturers that seeks to break the civil litigation log jam currently plaguing lemon law disputes. First, this measure provides for clear prelitigation procedures that seeks to protect consumers, provide clarity for automakers, and resolve disputes without ever requiring litigation. Secondly, this measure adopts a streamlined discovery process for cases that do get filed and encourages the use of mediation to resolve cases in a timely manner. Finally, the bill adopts consumer protections to ensure timely compliance with lemon law settlements.

AB 1755 strengthens the consumer protections of the lemon law statutes, provides equity and fairness for all parties to a lemon law dispute, and ensures timely access to justice for California consumers.

(Sen. Com. on Judiciary, Analysis of Assem. Bill No. 1755 (2023-2024 Reg. Sess.) as amended Aug. 26, 2024.) The purpose was to streamline and provide clarity.

Here, this appears to demonstrate an intent of the Legislature to require compliance with the pre-lawsuit notice requirement to maintain an action. Other similar pre-lawsuit notices have been required to be pled, despite nothing in the statutes specifically requiring it to be led. (See e.g., *Lafferty v. Wells Fargo Bank* (2013) 213 Cal.App.4th 545, 565 [CLRA notice sufficient pled under Civil Code § 1782].)

Plaintiff's opposition does not address this argument and mischaracterizes Defendant's motion. The failure to respond to a point is "equivalent to a concession." (*Sehulster Tunnels/Pre-Con v. Traylor Brothers, Inc.* (2003) 111 Cal.App.4th 1328, 1345, fn. 16.) However, Plaintiff attempts to offer proof of compliance through counsel's declaration. Like a demurrer, the Court may not consider extrinsic evidence when ruling on a motion to strike. (See, e.g., *Afuso v. United States Fid. & Guar. Co., Inc.* (1985) 169 Cal.App.3d 859, 852, disapproved on other grounds in *Moradi-Shalal v. Fireman's Funds Ins. Cos.* (1988) 46 Cal.3d 287 [error for court to consider contents of release which was not party of any court record].)

4.

CASE #	**CASE NAME**	**HEARING NAME**
CVSW2310968	MORTIMER VS KAFARAH	MOTION TO TAX COSTS

Tentative Ruling: Motion granted in part and denied in part.

Background - This is a premises liability action by Plaintiff Brenda Mortimer against Defendant Mohammad Kafarah dba Tobacco King. On December 28, 2023, Plaintiff filed her complaint alleging two causes of action for 1) negligence, 2) premises liability based on the allegation that the premises were in a dangerous condition existed consisting of a "poorly placed and maintained framed poster on the floor of the subject premises." On March 2, 2026, a jury trial commenced concerning this matter which concluded on March 19, 2026, with a net jury verdict in favor of Plaintiff in the amount of $135,465. On April 7, 2026, the Court entered Judgment in favor of Plaintiff and against Defendant. On May 1, 2026, Plaintiff filed her Memorandum of Costs seeking $41,102.48 in costs.

Defendant now moves to tax portions of Plaintiff's memorandum of costs. Specifically, Defendant moves to strike: Item 1.d filing fees of $472.35; Item 1.e filing fees of $219.25, Item 13 trial binders and demonstrative evidence of $9,721.57; and Item 15 other of $5,865.94. (Cal. Rules of Court, Rule 3.1700(b).) Defendant argues the challenged costs were not reasonable in amount nor were they reasonably necessary to the litigation.

Plaintiff opposes and argues the claimed costs are all reasonable and recoverable.

In reply, Defendant re-argues the points presented in his moving papers.